

		substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.300, subd. (c).) “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Ct., Rule 3.1348(a).) MCAP did not show MCAP acted with substantial justification or that the imposition of sanctions would be unjust as to the motion to compel further responses to form interrogatories. MCAP showed MCAP needed time to review documents and provide substantive further responses to the requests for production. No sanctions are warranted at this time for the motion to compel further responses to requests for production. MCAP shall pay monetary sanctions in the amount of \$2,925 to Rutan & Tucker, LLP within 30 days. Whether MCAP shall be compelled to produce the documents listed in MCAP’s privilege log should be determined in a properly noticed motion after the parties meet and confer. Plaintiff shall give notice.
14	Roche vs. Frey 2024-01373203	Motion for Bifurcation Continued to 11/16/2026